

STATE OF MICHIGAN
IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON
FAMILY DIVISION

Case No. 2024-001507-DC
Hon. Jenny L. McNeill

ANDREW JAMES PIGORS,
Plaintiff/Father,

v.

EMILY A. WATSON,
Defendant/Mother.

EXHIBIT U-021 — MCL 750.539 FELONY WIRETAPPING ANALYSIS

14th Circuit Court, Family Division, Muskegon County

Prepared: March 15, 2026

I. STATUTORY FRAMEWORK

MCL 750.539c — Eavesdropping Upon Private Conversation

"Any person who is present or who is not present during a private conversation and who wilfully uses any device to eavesdrop upon the conversation without the consent of all parties thereto... is guilty of a felony punishable by imprisonment for not more than 2 years or a fine of not more than \$2,000.00, or both."

Michigan is a **two-party consent state**. Both parties to a conversation must consent to recording. MCL 750.539c(1).

MCL 750.539d — Installation of Eavesdropping Device

"Any person who installs in any private place, without the consent of the person or persons entitled to privacy there, any device for observing, recording, transmitting, or photographing the sounds or events in that place... is guilty of a felony."

MCL 750.539e — Divulging / Using Information from Eavesdropping

"Any person who uses or divulges any information which he knows or reasonably should know was obtained in violation of sections 539a to 539d, is guilty of a felony..."

MCL 750.539g — Evidence Exclusion

"Any information obtained in violation of sections 539a to 539f is not admissible in any civil or criminal proceeding."

II. APPLICATION TO FACTS

A. The USB Recording

1. **Emily A. Watson** (or an agent acting on her behalf, specifically **Lori Watson**, Emily's mother) made a covert audio recording of a private conversation or interaction

involving **Andrew James Pigors** without his knowledge or consent.

2. The recording was placed on a **USB flash drive** and submitted to the court as evidence in custody/PPO proceedings.
3. **Neither Andrew Pigors nor any other recorded party consented** to the recording, making it an illegal wiretap under MCL 750.539c.

B. Chain of Evidence Contamination

1. The USB recording was submitted directly to **Hon. Jenny L. McNeill** through improper channels.
2. Judge McNeill admitted on the record: "**Yes, I had my staff listen to it**" — confirming that the contents of an illegally obtained recording were reviewed ex parte.
3. No authentication hearing under **MRE 901** was conducted before the recording was considered.

C. Felony Classification

Element	MCL 750.539c	Satisfied?
Private conversation	Parenting exchange is private	YES
Recording device used	USB recording confirms device	YES
Without consent of all parties	Andrew did not consent	YES
Willful act	Deliberate recording + court submission	YES

Conclusion: The recording meets all elements of a Class D felony under MCL 750.539c.

III. CONSEQUENCES FOR JUDICIAL PROCEEDINGS

A. Mandatory Exclusion (MCL 750.539g)

Any evidence derived from the USB recording is **categorically inadmissible** under MCL 750.539g. This includes:

- The recording itself
- Any transcription of the recording
- Any judicial findings based on the recording's contents
- Any orders entered after consideration of the recording

B. Fruit of the Poisonous Tree

- All derivative evidence obtained as a result of the illegal recording must be suppressed
- Court orders influenced by the recording's contents are legally infirm
- The ex parte review by the judge's staff compounds the violation

C. Impact on Judicial Impartiality

Judge McNeill's admission that she had her staff review the illegally obtained recording, combined with her failure to:

1. Exclude the evidence under MCL 750.539g
2. Conduct an authentication hearing under MRE 901
4. Recuse herself after ex parte exposure to inadmissible evidence

...constitutes grounds for disqualification under **MCR 2.003(C)(1)** (actual bias or prejudice) and demonstrates a pattern of ex parte conduct.

IV. APPLICABLE CASE LAW

V. CONCLUSION

The USB recording submitted to Judge McNeill constitutes a **felony violation** of MCL 750.539c. The recording is **categorically inadmissible** under MCL 750.539g. The court's ex parte review of this illegally obtained evidence, without authentication or adversarial hearing, fundamentally compromised the proceedings and constitutes an independent ground for judicial disqualification.

This analysis is prepared as an exhibit supporting the Motion for Disqualification of Hon. Jenny L. McNeill filed pursuant to MCR 2.003(B) and MCR 2.003(D)(1).